

9.

CASE #	CASE NAME	HEARING NAME
CVRI2504100	S. vs SENTINEL OFFENDER SERVICES, LLC	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling: The Court SUSTAINS the Demurrer without leave to amend.

Negligence

“In order to state a cause of action for negligence, the complaint must allege facts sufficient to show a legal duty on the part of the defendant to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (*Bellah v. Greenson* (1978) 81 Cal.App.3d 614, 619.) “Ordinarily, negligence may be alleged in general terms, without specific facts showing how the injury occurred, but there are ‘limits to the generality with which a plaintiff is permitted to state his cause of action, and ... the plaintiff must indicate the acts or omissions which are said to have been negligently performed. He may not recover upon the bare statement that the defendant's negligence has caused him injury.’” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 527.)

Here, Defendant challenges duty. “ ‘The existence of a duty is a question of law....’ ” (*Frausto v Department of California Highway Patrol* (2020) 53 Cal.App.5th 973, 988.) The negligence claim is based duties **Vaca owed**:

- A. Collect, monitor, oversee, and audit the SENTINEL issued cellular telephones used by RCSD deputies;
- B. Monitor communications between RCSD deputies and RASP participants;
- C. Ensuring the rules of the RASP program were adhered to by both participants and RCSD deputies alike;
- D. Reporting improper communications between RCSD deputies and RASP participants;
- E. Remaining unbiased regarding RCSD deputies and RASP participants.

(SAC ¶158.) Additionally, Plaintiffs allege that Vaca's duties include:

- A. Failing to monitor communications between RCSD deputies and RASP participants;
- B. Failing to ensure the rules of the RASP program were adhered to;
- C. Ignoring improper communications on SENTINEL cellular phones;
- D. Ignoring sexual communications between RCSD deputies and RASP participants on SENTINEL cellular phones;

- E. Failing to report improper communications on SENTINEL cellular phones;
- F. Failing to report sexual communications between RCSD deputies and RASP participants on SENTINEL cellular phones;
- G. Having a romantic relations with RCSD deputies; and
- H. Having a sexual relations with RCSD deputies.

(SAC ¶159.) While Plaintiffs contend these are duties owed, Plaintiffs fail to plead facts demonstrating why Defendant Vaca owed these duties on a legal basis. Plaintiffs admit that Vaca worked for Sentinel. (SAC ¶5.) Plaintiffs also admit that there was a contract between Sentinel, RCSD and County that lists the scope of services which only focus on maintaining the equipment. (SAC ¶145.) Nothing in the contract (1) imposes a duty on Vaca as it is between Sentinel, RCSD and County, and (2) imposes the types of duties listed in SAC ¶158-159. Plaintiffs have not pled facts demonstrating why Vaca owed these duties. The only allegations as to Vaca is that she had an obligation “for carrying out Sentinel policies and procedures and for ensuring the protection and safety of all inmates in the custody of the RCSD” (SAC ¶5); her “job was to collect, monitor, oversee and audit the work issued phones from deputies within the [RCSD] who were case managers in the RASP program” (SAC ¶27); Vaca and Heidecker had a sexual relationship (SAC ¶28-29); Vaca knew of Heidecker’s abuse of his position of power and failed to report or stop the conduct, and in fact, concealed it (SAC ¶30-31), and “Vaca allowed Heidecker to threaten to use that power that Vaca herself wielded, to issue negative reports, against his victims” (SAC ¶32). As to the latter allegation, it is unclear how Heidecker used Vaca’s power. For the remaining allegations, they do not demonstrate a duty to third parties such as Plaintiffs.

Plaintiffs’ new allegations in ¶165-170 do not add anything. ¶165 merely states that Vaca knew about Heidecker’s criminal sexual scheme and *could* issue a negative report to advance Heidecker’s scheme. However, there are no allegations that Vaca actually issued a negative report to advance Heidecker’s scheme.

¶166 incorporates the mandated reporter scheme of Welfare and Institutions Code section 15630, which applies to an elder or dependent adult. There are no facts that Plaintiffs are elders (defined as “any person residing in this state, 65 years of age or older” [Welf. & Inst. Code, § 15610.27]) or a dependent adult (defined as “a person, regardless of whether the person lives independently, between the ages of 18 and 64 years who resides in this state and who has physical or mental limitations that restrict his or her ability to carry out normal activities or to protect his or her rights, including, but not limited to, persons who have physical or developmental disabilities, or whose physical or mental abilities have diminished because of age.” [Welf. & Inst. Code, § 15610.23]).

¶167-168 are merely conclusions of mandatory duty. ¶169 alleges that Vaca had a special relationship because she had an ability to control Heidecker to prevent the harm. But, again, Plaintiffs fail to allege any facts demonstrating how Vaca had control other than a romantic relationship—which does not demonstrate control.

“Whether a duty should be imposed on a defendant depends on various policy considerations known as the Rowland factors.” (*Montes v. Young Men's Christian Assn. of Glendale, California* (2022) 81 Cal.App.5th 1134, 1140 [citing *Rowland v. Christian* (1968) 69 Cal.2d 108, 112–113].) The *Rowland* factors include: “the foreseeability of harm to the plaintiff, the degree of certainty that the plaintiff suffered injury, the closeness of the connection between the defendant's conduct and the injury suffered, the moral blame attached to the defendant's conduct, the policy of preventing future harm, the extent of the burden to the defendant and consequences to the community of imposing a duty to exercise care with resulting liability for breach, and the availability, cost, and prevalence of insurance for the risk involved.” (*Id.* at 113.)

Assuming as true that Vaca knew of Heidecker's abuse of power, while it may be foreseeable, the closeness of the connection between Vaca's conduct and the harm suffered by Plaintiffs is unclear. Nor is there sufficient moral blame. The vast majority of the allegations in the SAC deal with Heidecker's conduct—not Vaca's.

As a general rule, all persons have a duty to use ordinary care to prevent others from being injured as a result of their conduct. (See Civil Code §1714(a).) “Generally, unless a person has created a peril, there is no duty to aid another absent a special relationship. (*Benavidez v. San Jose Police Dept.* (1999) 71 Cal.App.4th 853, 859.)

In *Brown v. USA Taekwondo* (2021) 11 Cal.5th 204, 217, the court held that if there was no special relationship and no other circumstances that give rise to an affirmative duty to protect from a third party, there can be no such duty based on the *Rowland* factors. “A special relationship between the defendant and the victim is one that ‘gives the victim a right to expect’ protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that ‘entails an ability to control [the third party's] conduct.’ ” (*Id.* at 216.) As the court in *Colonial Van & Storage, Inc. v. Superior Court* (2022) 76 Cal.App.5th 487, 500 explained:

A defendant may have an affirmative duty to protect the plaintiff from harm by a third party “even though the risk of harm is not of the defendant's own making,” if a special relationship exists. [Citation.] “Relationships that have been recognized as ‘special’ share a few common features. Generally, the relationship has an aspect of dependency in which one party relies to some degree on the other for protection. [Citations.] ... [¶] The corollary of dependence in a special relationship is control. Whereas one party is dependent, the other has superior control over the means of protection. ‘[A] typical setting for the recognition of a special relationship is where “the plaintiff is particularly vulnerable and dependent upon the defendant who, correspondingly, has some control over the plaintiff's welfare.” ’ ” [Citation.] As a result, the plaintiff can claim a right to expect the defendant's protection. [Citation.]

Here, Plaintiffs plead no special relationship, such that Vaca owed a duty to Plaintiffs.

With no facts demonstrating a basis to impose a duty, the Court SUSTAINS the demurrer.

Civil Code § 52.1

Section 52.1 states: “If a person or persons, whether or not acting under color of law, interferes by threat, intimidation, or coercion, or attempts to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws of this state, the Attorney General, or any district attorney or city attorney may bring a civil action for injunctive and other appropriate equitable relief in the name of the people of the State of California, in order to protect the peaceable exercise or enjoyment of the right or rights secured.” (Civ. Code § 52.1.)

To prevail on a claim under the Bane Act, Civ. Code § 52.1, a plaintiff must allege “(1) intentional interference or attempted interference with a state or federal constitutional or legal right, and (2) the interference or attempted interference was by threats, intimidation or coercion.” (*A.B. v. County of San Diego* (2025) 112 Cal.App.5th 404, 417 [quoting *Allen v. City of Sacramento* (2015) 234 Cal.App.4th 41, 67].) “The essence of a Bane Act claim is that the defendant, by the specified improper means (*i.e.*, ‘threats, intimidation or coercion’), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law.” (*Id.* [citing *Austin B. v. Escondido Union Sch. Dist.* (2007) 149 Cal.App.4th 860, 883].) The Bane Act’s “threats, intimidation, or coercion” requirements, often referred to as the “egregiousness” element, was intended to prevent the statute from being applied to ordinary tort claims. (*Shoyoye v. County of Los Angeles* (2012) 203 Cal.App.4th 947, 956–57.)

Plaintiffs repeat the same allegations as the negligence claim. (SAC ¶176.) Plaintiffs fail to demonstrate how these constitute threats, intimidation or coercion. The closest allegation is “Allowing the threat of negative reports being issued, which the issuance of such reports is directly within Vaca’s position of power, to be used to obtain Plaintiffs’ compliance with Heidecker’s sexual demands.” (SAC ¶176(l).) However, Plaintiffs never fully explained how Vaca was able to issue these reports—when it’s not within the contract’s scope with RCSD or County (SAC ¶145), or how Vaca allowed Heidecker to issue negative reports (SAC ¶32).

Plaintiffs new allegations in ¶¶180-184 do not support the allegations as they are legal conclusions. A complaint must contain “[a] statement of the facts constituting the cause of action, in ordinary and concise language.” (Code Civ. Proc., § 425.10(a)(1).) ¶180 merely cites to *Cornell v. City & County of San Francisco* (2017) 17 Cal.App.5th 766, which involved an unlawful arrest. Plaintiffs plead no similar facts as to *Cornell*. ¶181 states Defendant Vaca violated Plaintiffs’ Fourth and Fourteenth Amendment rights, but fails to plead how Vaca did such. ¶182 describes excessive force, while

¶183-184 merely provide legal statements of the Fourth and Fourteenth Amendment. There are no facts here alleged. The Court SUSTAINS the demurrer.

Leave to Amend

While Plaintiffs request leave to amend, they have the burden to articulate a basis to amend. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145.) Plaintiffs assert that they can amend the complaint to include additional factual allegations but fail to identify those factual allegations. The Court SUSTAINS the demurrer without leave to amend.

10.

CASE #	CASE NAME	HEARING NAME
CVRI2504100	S. vs SENTINEL OFFENDER SERVICES, LLC	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling: The Court DENIES the Motion to Strike. A motion to strike may be applied to any irrelevant, false or improper matter, or any pleading not drawn or filed in conformity with the laws of the state, court rule, or court order. (Code Civ. Proc., § 436.) The grounds must appear on the face of the pleading or judicial notice. (*Id.* at § 437.)

Here, Plaintiffs filed their SAC on 6/1/26. The court, on 4/27/26, granted 30 days leave to amend and ordered Defendants to give notice. While Defendants contend they gave notice, nothing in the court docket demonstrates that they gave notice.

Even assuming arguendo that the SAC is untimely, the Court may accept an untimely amendment without a prior noticed motion. (*Harlan v. Department of Transportation* (2005) 132 Cal.App.4th 868, 873-875.) The Court exercises its discretion and allows the SAC. The Court DENIES the Motion to Strike.

11.

CASE #	CASE NAME	HEARING NAME
CVRI2506601	JONES vs YRUNGARAY	MOTION TO COMPEL

Tentative Ruling:

For FROGs:

The Court GRANTS as to nos. 2.2, 2.5, 2.8, 17.1.

The Court GRANTS in part as to no. 2.6, 2.7 to the extent that they seek relevant real property investment related experiences.

The Court DENIES as to nos. 2.3, 2.4, 2.11, 2.12, 2.13.